

RESOLUTION NO. _____

ENTITLED: "A RESOLUTION APPROVING OUTSIDE USER WATER/SEWER SERVICES, BY USER'S AGREEMENT, WITH SWAN RANCH PROPERTIES, LLC, LOT 4, BLOCK 1, SWAN RANCH RAIL PARK, THIRD FILING, LARAMIE COUNTY, WYOMING."

WHEREAS, Swan Ranch Properties, LLC is the owner of the property located at and described as follows:

Lot 4, Block 1, Swan Ranch Rail Park, Third Filing, Laramie County, Wyoming

WHEREAS, the Property owner desire to connect to the sanitary sewer service pursuant to a User's Agreement; and

WHEREAS, Swan Ranch Development, LLC, entered into a Lease Agreement (City Contract #5520) with the City of Cheyenne on March 8, 2010 for Water and Sewer Systems; and

WHEREAS, Swan Ranch, LLC and Granite Peak Development, LLC, entered into a Development Agreement with the City of Cheyenne on April 22, 2011; and

WHEREAS, pursuant to Resolution No. 3577, the Board of Public Utilities (BOPU) was instructed to present to the Governing Body for its review any application for the provision of water or sanitary sewer service to any individual or entity outside the corporate limits of the City of Cheyenne; and

WHEREAS, the BOPU approved the water/sanitary sewer service application provided that the Property owner Swan Ranch Properties, LLC signed a User's agreement pending approval by the Governing Body of the City of Cheyenne pursuant to Resolution No. 3577; and

WHEREAS, the Governing Body has reviewed the request for water/sanitary sewer services and determined that approval is in the best interest of the City.

NOW, THEREFORE, BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, that the application for an Outside User Water/Sewer Services Agreement is hereby approved for Swan Ranch Properties, LLC, Lot 4, Block 1, Swan Ranch Rail Park, Third Filing, Laramie County, Wyoming.

PRESENTED, READ AND ADOPTED THIS ____ DAY OF _____, 2011.

Richard Kaysen, Mayor

(SEAL)

ATTEST:

Carol A. Intlekofer, City Clerk

OUTSIDE USER WATER/SEWER SERVICES AGREEMENT

This agreement made this _____ day of _____, 20____ between the City of Cheyenne, hereinafter referred to as the "CITY," a municipal corporation organized pursuant to the laws of the State of Wyoming, acting by and through its Board of Public Utilities, hereinafter referred to as the "BOPU," and Swan Ranch Properties, LLC., hereinafter referred to as the "USER(S)."

WITNESSETH:

WHEREAS, the USER(S) are the current owners of and are desirous of connecting the property described as follows to CITY water and sanitary sewer system:

Lot 4, Block 1, Swan Ranch Rail Park Third Filing
Laramie County, Wyoming

WHEREAS, the BOPU has exclusive control of all CITY owned waterworks and sanitary sewer systems and operates the same for the CITY and may furnish surplus water and sanitary sewer facilities to persons outside the CITY pursuant to WYO. STAT. § 15-7-404 (a) (1977) and Title 13 of the Cheyenne City Code.

NOW, THEREFORE, in consideration of the mutual promises and covenants herein contained, the parties agree as follows:

1. The BOPU shall allow the USER(S) to connect the above-referenced property to the existing BOPU water system and sanitary sewer system at points determined by the BOPU.

2. The BOPU shall provide all necessary inspections for the construction and installation of the service line connections. The USER(S) shall provide the BOPU with a certificate of compliance, signed in affidavit form by a contractor licensed in the CITY, verifying that all construction materials and trade installation of service lines, service line fittings, and termination points at or in USER(S) dwellings and at the location of the USER'(S) dwellings and at the location of the USER'(S) water meter are in accordance with applicable provisions of federal, state and local codes, laws, and/or ordinances. Specific codes in effect include BOPU'S standards, International Plumbing Code and International Mechanical Codes Specific reference shall be given stating that 1) there are no taps off of the service line between the water meter and the water main; 2) that a BOPU water meter has been installed; 3) a backflow prevention device has been installed; and (4) that the service lines are only servicing one building. Inspection fees to be paid by the USER(S) shall compensate the BOPU at 1.5 times the then current inspection fee charged to in-CITY users. The cost of the water meters installed will be paid for by the BOPU not the users.

3. The USER(S) shall retain ownership of all improvements from the point of connecting to the BOPU water and sewer mains and shall be responsible for the maintenance, repair and upkeep thereof. The BOPU shall retain ownership of the water and/or sewer meter(s) and shall be responsible for the maintenance, repair and upkeep thereof.

4. After construction of said water main and sewer main improvements, after the activation of a functional potable water system and/or a functional sanitary sewer system and after approval and acceptance thereof by the BOPU, the USER(S) shall transfer ownership of all water mains, fire hydrants, sewer mains, lift stations, force mains and manholes to the BOPU, together with all necessary easements and rights-of-way for the maintenance and operation of the same. The USER(S) shall warrant the improvements for a two year period from the date of transfer. The BOPU shall retain ownership of improvements in the public right-of-way and shall be responsible for the maintenance, repair and

upkeep thereof. The User(s) shall retain ownership of all service lines from the point of tapping into the BOPU water mains and/or sewer mains and shall be responsible for the maintenance, repair and upkeep thereof.

5. The USER(S) shall comply with all applicable federal, state and local laws, rules, regulations and ordinances governing sanitary sewer systems including but not limited to Title 13 of the Cheyenne City Code. The USER(S) shall comply with all technical codes applicable to in-CITY construction which use or connect to the sewer mains including the BOPU standards, International Plumbing Code, International Mechanical Code and the International Fire Code, 2006 Edition, especially Section 508.1 and Section 1412. Further, USER agrees that engineered plans showing approved Fire Protection Water plans shall be provided to Cheyenne Fire and Rescue.

6. The USER(S) shall pay 1.5 times the BOPU water and sewer rates presently in effect for in-CITY users and shall be subject to all subsequent changes thereof. The USER(S) shall pay 1.5 times the BOPU water and sewer tap fees, system development fees and all other applicable rates and fees. In the event the BOPU negotiates a different water and/or sewer rate with a similarly situated user, the BOPU and USER(S) agree to adjust the water and/or sewer rates in a manner consistent with that negotiated with the similarly situated user. In the event the BOPU negotiates a water and/or sewer agreement with a district hereinafter created, the BOPU and USER(S) agree to adjust the water and/or sewer rates in a manner consistent with the water and/or sewer rates charged to the customers in said district by the water and/or sewer district. If annexation to the CITY takes place, the water and sewer rate and tap fees and other such charges will be not more than those charged to all other CITY users.

7. The USER(S) hereby consents to the annexation of the above-referenced property in the event said property qualifies for annexation to the CITY in accordance with WYO. STAT. § 15-1-402 and Cheyenne City Code Chapter 1.16 as the same may be hereafter amended and, by warranty deed covenants, will require future USER(S) to consent to the terms and conditions of this agreement including the annexation of the above-referenced property which utilizes the water and sewer mains in the event said property qualifies for annexation to the CITY in accordance with WYO. STAT. 15-1-402 and Cheyenne City Code Chapter 1.16 as the same may be hereafter amended.

8. No water wells will be allowed to be connected to the BOPU Water Supply system so long as water service is furnished by the BOPU or its successors. No septic systems will be allowed within said property so long as sanitary sewer service is furnished by the BOPU or its successors.

9. The USER(S) shall include the affirmative covenant attached hereto as Exhibit A and made a part hereof by this reference, with appropriate book and page numbers from the filing of this agreement with the Laramie County Clerk of Deeds, in all deeds from USER(S) conveying property included in the above-referenced property and hereby assign an equal right to the CITY to enforce the same.

10. The BOPU reserves the right to increase said water and sewer rate (to 2.0 times the in-CITY rate or the maximum allowed by law) to any property or lot within the above-referenced property not annexed to the CITY if said property or lot qualifies for annexation to the CITY and the CITY requests such annexation.

11. The BOPU and CITY reserve all governmental/sovereign immunities as provided by law. The USER(S) shall indemnify and hold harmless the BOPU and CITY, their officers, agents, employees and representatives from any claim or liability arising out of the failure to comply with the terms and conditions of this agreement or from any other action regarding the construction of said water distribution and sanitary sewer systems.

12. If a provision, section, subsection, sentence, clause or phrase of this agreement is invalidated by any court of competent jurisdiction, such holding shall not affect the validity of the remainder of the agreement, which shall continue in full force and effect.

13. The terms and conditions contained herein shall be a covenant running with the land and shall extend to and be binding upon the USER(S), their heirs, devisees, personal representatives, successors and assigns.

14. This agreement contains all the agreements of the representations between the parties. None of the terms of this agreement shall be waived or modified to any extent, except by written instrument signed and delivered by both parties.

IN WITNESS WHEREOF, the parties hereto have executed this agreement on the date first above written.

CHEYENNE BOARD OF PUBLIC UTILITIES

BY:

Tim Wilson, Director

STATE OF WYOMING)

) ss

COUNTY OF LARAMIE)

The foregoing instrument was acknowledged before me by
_____, this _____ day of
_____, 20__.

Witness my hand and official seal.

Notary Public

My commission expires: _____

USER(S): _____

BY:

_____, Property Owner

STATE OF WYOMING)

) ss

COUNTY OF LARAMIE)

The foregoing instrument was acknowledged before me by
_____, and _____, this
_____ day of _____, 20__.

Witness my hand and official seal.

Notary Public

My commission expires: _____

EXHIBIT "A"

COVENANT

The above conveyance is expressly made subject to the terms and conditions of the USER WATER & SANITARY SEWER SERVICES AGREEMENT recorded in book_____ and pages_____ with the Laramie County Clerk of Deeds, such terms and conditions to be binding upon and to be observed by the Grantee(s) herein (his, her, their) heirs, executors, administrators and assigns, and to run with and bind the land in favor of and to be enforceable by the Grantor and their legal representatives, heirs, successors and assigns including the City of Cheyenne, Wyoming. In the event of a violation or non-observance of the terms and conditions of said USER WATER & SANITARY SEWER SERVICES AGREEMENT, the Grantor, their legal representatives, heirs, successors and assigns including the City of Cheyenne, Wyoming, shall have the right to enforce the same including but not limited to granting consent to the annexation on behalf of the Grantee(s); and no act or admission upon the part of any of the beneficiaries of this clause shall be a waiver of the operation or enforcement of such condition.